

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-28

COOL LIVING LLC,

COMPLAINANT,

v.

ALPI U.S.A., INC.,

ALPI AIR & SEA A/S,

RESPONDENTS.

JOINT STATUS REPORT

Pursuant to Your Honor’s July 14, 2026, Order, Complainant, Cool Living LLC (“Cool Living”) and Respondents, ALPI U.S.A., Inc. and ALPI Air & Sea A/S (“ALPI”) (collectively the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report addressing the seven questions posed:

Order Question 1. Whether the parties agree to the date, time, and location to take the deposition of Michael Haahr Hansen, and if so, provide that information.

Response: Michael Haahr Hansen has agreed to be deposed remotely during the week of August 3, 2026, or August 10, 2026, subject to Counsel’s trial calendar. Counsel for Respondents are working through their schedules to effectuate this deposition. Once a date is confirmed by counsel

for Respondents, a subpoena with the agreed date, time and location will be submitted to the Presiding Officer.

Order Question 2. Whether the parties agree to the manner in which the deposition will be taken or to stipulate in writing to a telephonic or remote deposition, and if so, provide that information.

Response: Because Michael Haahr Hansen has agreed to a remote deposition, the parties will effectuate a stipulation memorializing this agreement.

Order Question 3. Whether the parties agree that one of them will be responsible for securing a court reporter to be present with the witness at the location where the deposition is to be conducted in order to administer the oath and transcribe the testimony, and if so, to provide that information.

Response: Complainant will be responsible for securing a court reporter, and the parties agree that court reporter may be in-person or remote to effectuate the deposition of Michael Haahr Hansen.

Order Question 4. Whether Respondents' counsel are authorized to accept service of a subpoena on behalf of Michael Haahr Hansen, and if so, by what manner service can be accepted. If not, whether they can provide Complainant's counsel with the date, time, and location at which Michael Haahr Hansen will be present and available for personal service of a subpoena by a process server.

Response: Michael Haahr Hansen has agreed to allow his counsel, counsel for Respondents, to accept service of the subpoena issued, by email from counsel for Complainant, once the subpoena is issued by the Presiding Officer.

Order Question 5. If Respondents' counsel are not authorized to facilitate service of a subpoena as described in paragraph 4 herein, provide a detailed description of the efforts Respondents are able to take in order to facilitate service of a subpoena on Michael Haahr Hansen.

Response: In light of Response to Order Question 4, this is not applicable.

Order Question 6. The blackout dates on which Michael Haahr Hansen and Respondents' counsel are not available for deposition within the next 60 day period.

Response: There is no availability Respondents' counsel before August 2, 2026. There are no blackout dates, per se, and general availability during the week of August 3 and August 10, 2026 for Michael Haahr Hansen and Respondents' counsel, subject to Respondent's trial availability. Michael Haahr Hansen will waive the 21-day notice requirement for the subpoena issuance.

Order Question 7. Whether the parties have agreed to request an extension of the discovery deadline and briefing schedule by a particular amount of time, and if so, provide that information.

Response: As suggested by the Presiding Officer at the status conference, the parties agree to extend discovery by 60 days in order to take the testimony of Michael Haahr Hansen so that the parties have greater flexibility in scheduling the deposition. The parties also agree to submit a joint request for an extension of the discovery deadline on Monday, July 20, 2026, which memorializes this agreement.

Respectfully Submitted,

Dated: July 17, 2026

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